

**Judge Mosbarger – Law & Motion – Wednesday, May 20, 2026 @ 9:00 AM
TENTATIVE RULINGS**

1. 21CV02281 SUSAN EIDSON AND AMY BAIRD, SUCCESSOR TRUSTEES OF THE NIXON FAMILY TRUST V. TESTATE AND INTESTATE SUCCESSORS OF THE HARRY G MCKEEN, AND EVALYN I MCKEEN ET AL

EVENT: Motion for Substitution of Party Plaintiff

The Motion for Substitution of Party Plaintiff is granted, and the Court will sign the form of order submitted.

2. 22CV02594 MOFFITT, DEREK C ET AL V. MOFFITT, TERESA L ET AL

EVENT: Plaintiffs' Motion to Compel Teresa L. Moffitt to Produce Documents Described in Deposition Notice and for Sanctions

The Objections to Reply Evidence submitted by Derek and Sandi Moffitt are overruled. *Code of Civil Procedure* §2025.480 provides that the deadline for filing a Motion to Compel is “60 days after the completion of the record of the deposition.” Here, the deposition is not complete because the parties have mutually agreed that the deposition of Teresa Moffitt will be done in one to four two-hour sessions in one ongoing deposition. As such, the Court deems this Motion timely. Additionally, the Court finds that the meet and confer efforts of the parties to be sufficient. As to the merits of the Motion, the Court finds that Plaintiffs have sufficiently established good cause for the Requests, the objections largely lack merit, and the Motion is granted, in part. Teresa Moffitt is ordered to produce the documents requested in the deposition notice, limited to non-confidential, non-privileged, and non-expert related documents (see Request Nos. 3-4), and any such documents can be withheld with the submission of a privilege log. No response is required for Request No. 180, which the Court finds to be overbroad and unduly burdensome. Plaintiffs’ request for sanctions is granted. Sanctions are awarded in favor of Plaintiffs and against Defendant Teresa Moffitt and her counsel of record in the amount of \$2,500, which are to be paid within 30 days’ notice of this ruling. Counsel for the Plaintiffs shall prepare and submit a form of order consistent with this ruling within two weeks.

3. 22CV02761 BRANCH, BRANDON ET AL V. ARTHUR, LINDBERG, III

EVENT: Motion for Terminating Sanctions and Attorney Fees

Defendant’s Motion for Terminating Sanctions and Attorney Fees is granted in part. While the Court is not inclined to grant terminating, sanctions based on this record (see, *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093), the Court does award further monetary sanctions in the amount of \$800, against Plaintiffs Brandon Brach, Lacy Branch, and Beau Branch, a minor, which is to be paid within 14 days’ notice of the Court’s order, with the previously ordered responses to discovery. Defendant shall submit a revised form of order consistent with this ruling within two weeks.